

106

2026:PHHC:086652



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-29442-2026
Decided On: 04.06.2026**

MOHIT JAIN

....PETITIONER(S)

VERSUS

STATE OF HARYANA

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Pawan Kumar Mutneja, Sr. Advocate with
Mr. Brijesh Kumar, Advocate and
Mr. Anup Kumar Nagar, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)**1. Prayer**

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.13 dated 21.01.2026 under Sections 316(2), 318(4) BNS registered at Sarai Khawaja Police Station, Faridabad, Haryana.

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the dispute in question is purely civil in nature and has been wrongly given a criminal colour. Learned counsel further submits that the petitioner and the complainant had entered into a verbal mutual agreement whereby the complainant agreed to

supply goods on a credit basis with the objective of establishing the complainant's brand, "GRATUS," in India. It is argued that, in the complaint, the complainant has merely alleged that the goods were supplied through various trucks but has failed to specify the corresponding commercial invoice numbers. According to the petitioner, this omission demonstrates that the matter pertains to a commercial transaction and contractual obligations rather than constituting an offence of cheating. It is further submitted that the petitioner is ready and willing to join the investigation and cooperate with the investigating agency.

Notice of motion.

On behalf of the State

On the asking of the Court, Ms. Ruchi Sekhri, Addl. AG Haryana, accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner on the ground that the petitioner is a habitual offender who, in connivance with the co-accused, has been deceiving innocent persons. It is contended that the petitioner never intended either to return the goods supplied to him or to make payment for the same. Further, learned State counsel submits that only a partial payment was made by the petitioner after the registration of the FIR, solely with a view to evade legal consequences.

Learned State counsel in addition submits that the petitioner is involved in four other criminal cases and is presently on bail therein. In view of his criminal antecedents and the nature of the allegations, it is argued that the petitioner does not deserve the concession of anticipatory bail.

3. Analysis

In the present case, the allegations against the petitioner primarily arise out of a business transaction between the parties. The petitioner has asserted that the goods were supplied pursuant to a verbal understanding on a credit basis for promotion of the complainant's brand in India. Whether the transaction was entered into with a fraudulent intention from its inception or whether the dispute is essentially civil in nature involving recovery of outstanding dues is a matter that would require thorough investigation and adjudication during the course of trial.

At this stage, no material has been pointed out by the State to demonstrate that custodial interrogation of the petitioner is indispensable. In para 11 of the petition, the petitioner has expressed his willingness to join the investigation and cooperate with the investigating agency.

As far as the pendency of other cases and involvement of the petitioner therein is concerned, reliance can be placed upon the order of this Court rendered in *CRM-M-25914-2022* titled as “*Baljinder Singh alias Rock vs. State of Punjab*” decided on 02.03.2023, wherein, while referring Article 21 of the Constitution of India, this Court has held that no doubt, at the time of granting bail, the criminal antecedents of the petitioner are to be looked into but at the same time it is equally true that the appreciation of evidence during the course of trial has to be looked into with reference to the evidence in that case alone and not with respect to the evidence in the other pending cases. In such eventuality, strict adherence to the rule of denial of bail on account of pendency of other cases/convictions in all probability would lend the petitioner in a situation of denial the concession of bail.

In the light of above, this Court has no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

04.06.2026
NainaRajput

<i>Whether speaking/reasoned</i>	<i>:Yes/No</i>
<i>Whether reportable</i>	<i>:Yes/No</i>